

The first statutes of the Indian Institute of Technology (Indian School of Mines), Dhanbad, 2017

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The first statutes of the Indian Institute of Technology (Indian School of Mines), Dhanbad, 2017

UNION OF INDIA

India

The first statutes of the Indian Institute of Technology (Indian School of Mines), Dhanbad, 2017

Rule

THE-FIRST-STATUTES-OF-THE-INDIAN-INSTITUTE-OF-TECHNOLOGY-INDIAN-SCHOOL-OF-MINES-DHANBAD-2017 of 2017

Published on 23 June 2017

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The first statutes of the Indian Institute of Technology (Indian School of Mines), Dhanbad, 2017

Published vide Notification No. G.S.R. 632(E), dated 23 June, 2017

Ministry of Human Resource Development

(Department of Higher Education)

G.S.R. 632(E). - In exercise of the powers conferred by clause (i) of sub-section (d) of section 6 read with sub-section (1) of section 27 of the Institutes of Technology Act, 1961 (59 of 1961

), the Council after review and approval of the Visitor hereby makes the following First Statutes, namely:-

1.

Short title and Commencement.

(1)

These Statutes may be called the first statutes of the Indian Institute of Technology (Indian School of Mines), Dhanbad, 2017.

(2)

They shall come into force on the date of their publication in the official Gazette.

2.

Definitions.

(1)

In these Statutes unless the context otherwise requires -

(a)

"Act" means the Institutes of Technology Act, 1961 (59 of 1961

)

(b)

"Authorities", "Officers" and "Professors" respectively means the authorities, officers and professors of the Institute;

(c)

"Building and Works Committee" means the Building and Works Committee of the Institute;

(d)

"Centre" or "School" means an Academic Centre or School so established to carry out and facilitate academic or research activities or both leading to Bachelor's or Master's or Ph.D. degree;

(e)

"Central Government" means the Government of India;

(f)

"Chief Warden" in relation to the Hostels, means the Chief Warden thereof;

(g)

"Dean" means the Dean appointed by the Director;

(h)

"Department" means an Academic Department established to impart instructions and for carrying out research activities leading to Bachelor's or Master's degree or both and Ph.D. degrees;

(i)

"Finance Committee" means the Finance Committee of the institute;

(j)

"Head" in relation to a Department or Centre or School means the Head thereof;

(k)

"Hostel" means a Hostel for the residence of the students of the Institute ;

(l)

"Institute" means the Institute known as the Indian Institute of Technology (Indian School of Mines) Dhanbad, incorporated under the Act;

(m)

"Ordinances" means the Ordinances of the Institute;

(n)

"Senate" means the Senate of the Institute;

(o)

"Service Centre" means an Academic Service Centre so established to provide infrastructural or scientific or both and technical support to further and enhance academic and research activities;

(p)

"Warden" in relation to a Hostel of the Institute means a Warden thereof

(2)

Words and expressions used herein and not defined or defined in the Act shall have the same meanings assigned to them in the Act.

3.

Board of Governors.

(1)

The Board shall lay down norms consistent with the overall policy frame work issued by the Central Government in regard to the following, namely:-

(i)

industrial consultancy;

(ii)

collaboration with Foreign and Indian Educational and Research Institutions;

(iii)

acceptance of Donations;

(iv)

academic Support to other Technical Institutions.

(2)

The Board shall lay down the policy regarding the limit of expenditure to be incurred and the approval thereof in case of minor and capital works and repair and maintenance of estate and works.

4.

Meeting.

- The procedure for the constitution and the meetings of the Board shall be as follows, namely:-

(a)

The bodies entitled to nominate or elect representatives on the Board shall be invited by the Registrar to do so within a reasonable time not ordinarily exceeding eight weeks from the date on which he issues such invitations and the same procedure shall be followed for filling casual vacancies on the Board.

(b)

The Board shall meet as often as may be necessary but not less than twice during a calendar year.

(c)

Meetings of the Board shall be convened by the Chairman either on his own initiative or at the request of the Director or on a requisition signed by not less than three members of the Board.

(d)

Four members including one member from outside the Institute shall form a quorum for a meeting of the Board:

Provided that if a meeting is adjourned for want of quorum, it shall be held on such a day, time and place, as the Chairman may determine, and if at such a meeting, a quorum is not present within half-an-hour from the time appointed for holding a meeting, the members present shall be a quorum.

(e)

All questions considered at the meetings of the Board shall be decided by a majority of the votes of the members present including the Chairman and if the votes be equally divided, the Chairman shall have a second or casting vote.

(f)

The Chairman, if present, shall preside at every meeting of the Board and in his absence, the members present shall elect one from amongst themselves to preside at the meeting.

(g)

A written notice of every meeting shall be sent by the Registrar to every member at least three weeks before the date of the meeting and the notice shall state the place, the date and time of the meeting:

Provided that the Chairman may call a special meeting of the Board at short notice to consider urgent special issues.

(h)

The notice may be delivered either by hand or by speed or registered post at the address of each member as recorded in the office of the Board or by email and if so sent, shall be deemed to be duly delivered at the time at which notice would be delivered in the ordinary course of post.

(i)

Agenda shall be circulated by the Registrar to the members at least ten days before the meeting.

(j)

Notices of motions for inclusion of any item on the agenda must reach the Registrar at least one week before the meeting and the Chairman may, however, permit inclusion of any item for which due notice has not been received.

(k)

The ruling of the Chairman in regard to all questions of procedure shall be final.

(l)

The minutes of the proceedings of a meeting of the Board shall be drawn up by the Registrar with the approval of the Chairman and circulated to all members of the Board present in India and the minutes along with amendments, if any suggested, shall be placed for confirmation at the next meeting of the Board and after the minutes are confirmed and signed by the Chairman, they shall be recorded in a minute book which shall be kept open for inspection of the members of the Board and the Council at all times during office hours.

(m)

If a member of the Board fails to attend three consecutive meetings without leave of absence from the Board he shall cease to be a member of the Board.

(n)

The Board may delegate such of its powers to the Director, as may be deemed appropriate by it, however, the Director shall report to the Board of the action taken by him at its next meeting.

5.

Authentication of orders and decisions of the Board.

- All orders and decisions of the Board shall be authenticated by the signature of the Registrar or any other person authorised by the Board in this behalf.

6.

Senate.

(1)

In addition to the persons mentioned in section 14 of the Act, the following shall be the members of the Senate, namely:-

(a)

the Heads of the Departments or Academic Centres or Schools other than Professors, as are not members of the Senate;

(b)

the Deans and Associate Deans other than Professors, as are not members of the Senate;

(c)

the Librarian of the Institute;

(d)

one Chief Warden by rotation to be nominated by the Director for a period of one year;

(e)

not more than six other members of the academic staff for their special knowledge appointed by the Chairman after consultation with the Director for such period as may be specified by the Chairman.

(2)

Subject to the provisions of the Act, the Senate shall have the power to:-

(a)

frame and revise curricula and syllabi for the courses of studies for the various Departments or Academic Centres or Schools;

(b)

make arrangements for the conduct of examinations, appoint examiners, moderators, tabulators and the like;

(c)

declare the results of the examinations or to appoint Committees or officers to do so and to make recommendations to the Board regarding conferment or grant of degrees, diplomas and other academic distinctions or titles;

(d)

appoint Advisory Committees or Expert Committees or both for the Departments and the Academic Centres or Schools of the Institute to make recommendation on academic matters connected with the working of the Department or Academic Centre or School and the Head of the Department concerned shall act as convenor of such Committees;

- (e) appoint Committees from amongst the members of the Senate, other teachers of the Institute and experts from outside to advise on such specific academic matters as may be referred to any such Committee by the Senate;
 - (f) consider the recommendations of the Advisory Committee attached to various Departments or Academic Centres or Schools and that of Expert and other committees and take such action (including the making of recommendations to the Board) as circumstances of each may require;
 - (g) make periodical review of the activities of the Departments and take appropriate action (including the making of recommendations to the Board);
 - (h) supervise the working of the Library;
 - (i) promote research within the Institute and require reports on such research from the persons engaged thereon;
 - (j) provide for the inspection of the classes and the Hostels in respect of the instructions and discipline therein, supervise the co-curricular activities of the students of the Institute and submit reports thereon to the Board;
 - (k) award stipends, scholarships, fellowships, medals and prizes and make other awards in accordance with the Ordinances and such other conditions as may be attached to the award;
 - (l) make recommendations to the Board with regard to the creation of posts on the academic staff and the abolition thereof, and duties attached to such posts;
 - (m) make recommendations to the Board with regard to the establishment of the Departments or Centres or Schools or Service Centres and the abolition thereof, and the allocation of academic and other staff to such Academic Departments or Centres or Schools or Service Centres;
 - (n) provide support to other technical institutions in furtherance of their academic standards;
 - (o) outreach through distance learning mode to enhance the academic and research productivity of the Institute.
- (3) The Senate shall meet as often as necessary, but not less than four times during a calendar year.
- (4)
- (a) Meetings of the Senate shall be convened by the Chairman of the Senate either on his own initiative or on a requisition signed by not less than 20% of the members of the Senate.
- (b) The requisitioned meeting shall be a special meeting to discuss only those items of agenda for which requisition is made. The requisitioned meeting shall be convened by the Chairman of the Senate on date and time convenient to him within fifteen days of the notice given for such a requisition.
- (5) One third of the total number of members of the Senate shall form a quorum for a meeting of the Senate.
- (6) The Director, if present, shall preside at every meeting of the Senate. In his absence, the Deputy Director shall preside and in the absence of both the Director and the Deputy Director, the senior-most of the Deans present shall preside at the meeting. In case none of the Deans are present, the senior-most of the Professors present shall preside at the meeting.
- (7) A written notice of every meeting, together with the agenda shall be circulated by the Registrar to the members of the Senate at least a week before the meeting and the Chairman of the Senate may permit inclusion of any item for which

due notice could not be given.

(8)

Notwithstanding the provisions of sub-statute (7), the Director may call an emergency meeting of the Senate at short notice to consider urgent special issues.

(9)

The ruling of the Chairman of the Senate in regard to all questions of procedure shall be final.

(10)

The minutes of the proceedings of a meeting of the Senate shall be drawn up by the Registrar with the approval of the Chairman of the Senate and circulated to all the members of the Senate present in India:

Provided that any such minute shall not be circulated if the Senate considers such circulation prejudicial to the interests of the Institute and the minutes along with amendments, if any suggested, shall be placed for confirmation at the next meeting of the Senate and after the minutes are confirmed and signed by the Chairman of the Senate, they shall be recorded in the minute book which shall be kept open for inspection of the members of the Senate, the Board and the Council at all times during office hours.

(11)

In emergent cases the Chairman of the Senate may exercise the powers of the Senate and report to the Senate of the action taken by him at its next meeting for its approval.

7.

Finance Committee.

(1)

The Finance Committee, shall be an authority of the Institute within the meaning of section 10 of the Act and it shall consist of the following members, namely:-

(a)

the Chairman, ex officio, who shall be the Chairman of the Finance Committee;

(b)

two persons nominated by the Central Government;

(c)

three persons nominated by the Board, and

(d)

the Director.

(2)

(a)

The term of office of a member nominated under clauses (b) and (c) of sub-statute (1) above shall be three years from the 1st day of January of the year in which he is nominated.

(b)

The term of office of a member nominated to fill a casual vacancy shall continue for the remainder of the term of the member in whose place he has been nominated.

(3)

The Finance Committee shall perform the following functions, namely:-

(a)

to examine and scrutinise the annual budget of the Institute prepared by the Director and make recommendations to the Board;

(b)

to give its views and make its recommendations to the Board either on the initiative of the Board or of the Director, or on its own initiative of any financial question affecting the Institute;

(c)

to consider and make its recommendations to the Board on all such matters connected with the Institute as have financial implications.

(4)

The Finance Committee shall meet as often as may be necessary but at least twice a year.

(5)

Three members of the Finance Committee shall form a quorum for a meeting of the Finance Committee.

(6)

The Chairman, if present, shall preside at the meeting of the Finance Committee and in his absence, the members present shall elect one from amongst themselves to preside at the meeting.

(7)

The provisions in the above Statutes regarding notices of the meeting, inclusion of items in the agenda and confirmation of the minutes applicable to the meetings of the Board shall, so far as may be, be applicable in connection with the meetings of the Finance Committee.

(8)

A copy of the minutes of every meeting of the Finance Committee shall be sent to the Board.

(9)

In emergent cases, the Chairman may exercise the powers of the Finance Committee and report the action taken by him at the next meeting of the Finance Committee for its approval.

8.

Building and Works Committee.

(1)

The Building and Works Committee shall be an authority of the Institute within the meaning of section 10 of the Act and it shall consist of the following members, namely:-

(a)

the Director, ex-officio, who shall be the Chairman of the Building and Works Committee;

(b)

the Deputy Director, ex officio;

(c)

the Professor in Charge Estate and Works, ex-officio;

(d)

one person nominated by the Central Government;

(e)

one Civil Engineer, not below the rank of Superintending Engineer, nominated by the Board from a Government Department or Agency;

(f)

one Electrical Engineer, nominated by the Board from a Government Department or Agency;

(g)

three Professors of the Institute with relevant specialisations, to be nominated by the Board;

(h)

the Institute Engineer, Ex-officio;

(i)

the Registrar, Ex-officio Secretary.

(2)

(a)

The term of office of an ex-officio member shall continue so long as he holds the office by virtue of which he is a member.

(b)

The term of office of a member nominated under clauses (d), (e), (f) and (g) of sub-statute (1) above shall be two years from the 1st day of January of the year in which he is nominated.

(3)

The Building and Works Committee shall perform the following functions and have the following powers, namely:-

(a)

it shall be responsible under the direction of the Board for construction of all major capital works after securing from the Board the necessary administrative approval and expenditure sanction;

(b)

it shall have the power to give the necessary administrative approval and expenditure sanction for minor works and

works pertaining to maintenance and repairs, within the expenditure limit approved by the Board and within the grant placed at the disposal of the Institute for the purpose;

(c)

it shall cause to be prepared estimates of cost of buildings and other capital works, minor works, repairs, maintenance and the like;

(d)

it shall be responsible for making technical scrutiny as may be considered necessary by it;

(e)

it shall be responsible for enlistment of suitable contractors and acceptance of tenders and shall have the power to give direction for departmental works where necessary;

(f)

it shall have the powers to settle rates not covered by tender and settle claims and disputes with contractors.

(4)

The Building and Works Committee shall perform such other functions in the matter of construction of buildings and development of land for the Institute as the Board may entrust to it from time to time.

(5)

In emergent cases, the Chairman of the Building and Works Committee may exercise the powers of the Building and Works Committee and such cases shall be reported by him to the Building and Works Committee at its next meeting.

(6)

The Building and Works Committee shall meet as often as is necessary, but not less than twice a year.

(7)

Three members shall form a quorum for a meeting of the Building and Works Committee.

(8)

The provisions in these Statutes regarding notices of meeting, inclusion of items in the agenda and confirmation of the minutes applicable to the meetings of the Board shall, so far as may be, be applicable in connection with the meetings of the Building and Works Committee.

(9)

A copy of the minutes of every meeting of the Building and Works Committee shall be sent to the Board.

9.

Chairman.

(1)

The Chairman shall have the power to fix on the recommendations of the Selection Committee, the initial pay of an incumbent at a stage higher than the minimum of the scale in respect of posts to which appointments can be made by the Board under the provisions of the Act.

(2)

The Chairman shall have the power to send members of the staff of the Institute for training or for a course of instruction outside India subject to such terms and conditions as may be laid down by the Board from time to time.

(3)

The Chairman shall execute the Contract of Service between the Institute and the Director:

Provided that the Chairman shall not be personally liable in respect of anything under such contract.

(4)

In emergent cases, the Chairman may exercise the powers of the Board and inform the Board of the action taken by him for its approval in its next meeting.

10.

Director.

(1)

The Director appointed, under the provisions of Section 17 (1) of 'The Institutes of Technology Act, 1961' as amended from time to time, by the Council with the prior approval of the Visitor, on contract for a period of five years or till he or she attains the age of seventy (70) years, whichever is earlier shall have power to incur expenditure in accordance with the procedure as may be laid down by the Board from time to time subject to the budget provisions made for the specific purpose.

(2)

The Director shall have the power to reappropriate funds with respect to different items constituting the recurring budget up to such limit for each item as may be determined by the Board from time to time:

Provided that such reappropriation shall not involve any liability in future years. Every such reappropriation shall, as soon as possible, be reported to the Board.

(3)

The Director shall have the power to waive recovery of overpayment up to such limit as may be determined by the Board from time to time, made to a member of the staff, not detected within twenty-four months of payment. Every such waiver shall, as soon as possible, be reported to the Board.

(4)

The Director shall have the power to write off irrecoverable losses and irrecoverable value of stores lost or rendered unserviceable due to fair, wear and tear on the recommendation of a Standing Committee appointed by the Board for such purpose subject to such financial limit, as may be specified by the Board from time to time.

(5)

The Director shall have the power to fix, on the recommendation of the Selection Committee, the initial pay of an incumbent at a stage higher than the minimum of the scale, but not involving more than five increments, in respect of such posts to which appointment can be made by him as stipulated by the Board in accordance with the Act.

(6)

The Director shall have the power to employ technicians and workmen paid from contingencies involving such emoluments as may be stipulated by the Board from time to time.

(7)

The Director shall have the power to send the members of the staff for training or for a course of instruction inside India subject to such terms and conditions as may be laid down by the Board from time to time.

(8)

The Director shall have the power to sanction remission or reduction of rent for buildings rendered wholly or partially unsuitable.

(9)

The Director shall have the power to sanction temporary allocation of any building for any purpose other than that for which it was constructed.

(10)

In exceptional cases, subject to availability of funds, the Director shall have the power to create temporary posts with the approval of the Chairman, of not more than two years' duration on approved scales of pay under report to the Board provided that no such post, of which the Director is not the appointing authority, shall be so created.

(11)

The Director shall have the power of a Head of Department for purposes of rules in the Account Code, the Fundamental and Supplementary Rules and other rules of the Government in so far as they are applicable or may be made applicable to the conduct of the business of the Institute.

(12)

If, for any reason, the Registrar is temporarily absent for a period not exceeding one month, the Director may take over, or assign to any member of the staff of the Institute, any of the functions of the Registrar as he deems fit:

Provided that if, at any time, the temporary absence of the Registrar exceeds one month the Board may, if it thinks fit, authorize the Director to take over or assign the function of the Registrar as aforesaid, for a period exceeding one month.

(13)

The Director may, during his absence from the headquarters, authorise the Deputy Director or one of the Deans or the senior most Professor present, to sanction advances for travelling allowance, contingencies and medical treatment of the staff and sign and countersign bills on his behalf and authorise him for assuming such powers of the Director as may be specifically delegated to the Deputy Director or one of the Deans or the senior most Professor present, by him in writing.

(14)

The Director may, at his discretion, constitute such Committees as he may consider appropriate.

(15)

In the event of the occurrence of any vacancy in the office of the Chairman by reason of his death, resignation, or otherwise or in the event of the Chairman being unable to discharge his functions owing to absence, illness or any other cause, the Director may discharge the functions assigned to the Chairman under Statute 9.

11.

Deputy Director.

(1)

The Deputy Director shall be appointed by the Director from amongst the Professors of the Institute with the prior approval of the Chairman, on such terms and conditions as may be decided by the Board from time to time and the Deputy Director shall be entitled to additional monetary benefit as may be prescribed/approved by the Government of India, from time to time.

(2)

The Deputy Director shall assist the Director in academic and administrative work and in maintaining liaison with other institutions of higher learning and research and also with industrial undertaking and other employers.

12.

Deans.

(1)

The Director may appoint Deans and Associate Deans to assist him in discharging his duties and responsibilities, in consultation with the Chairman.

(2)

The Deans and Associate Deans shall be appointed by the Director from amongst the teachers for a period of three years and they shall hold their offices at the pleasure of the Director.

(3)

The Deans and the Associate Deans shall be deemed to be the officers of the Institute and will enjoy such powers and perform such duties as may be delegated to them by the Director with the prior approval of the Board and the Associate Deans shall normally assist the respective Deans in the performance of their duties.

(4)

The Deans and Associate Deans shall be entitled to additional monetary benefit as may be prescribed or approved by the Government of India, from time to time.

13.

Classification of the employees of the Institute.

(1)

Except in the case of employees paid from contingencies, the employees of the Institute shall be classified as:-

(a)

Academic Staff - which shall include Director, Deputy Director, Professor, Associate Professor, Assistant Professor, Librarian, Deputy Librarian, Assistant Librarian, System Manager, Senior Programmer, System Analyst, Programmer, Research Engineer or Computer Engineer, Workshop Superintendent, Assistant Superintendent Workshop, Chief Scientific Officer, Principal Scientific Officer, Senior Scientific Officer, Scientific Officer and such other academic posts as may be decided by the Board from time to time.

(b)

Technical Staff - which shall include Institute or Campus Engineer, Assistant Institute or Campus Engineer, Junior Engineer, Technical Officer, Foreman, Assistant Foreman, Senior Laboratory Assistant, Laboratory Assistant, Senior Technical Assistant, Technical Assistant, Telephone Operator, Driver, Senior Pharmacist, Pharmacist, Staff Nurse, Dresser, Physical Training Instructor, Assistant Coach and such other technical posts as may be decided by the Board from time to time.

(c)

Administrative and other Staff - which shall include Registrar, Deputy Registrar, Assistant Registrar, Estate Officer, Security Officer, Horticulturist, Public Relations Officer, Chief Medical Officer, Medical Officer, Sports Officer, Assistant Sports Officer, Counsellor, Assistant Counsellor, Personal Secretary, Personal Assistant, Superintendent, Assistant, Upper Divisional Clerk, Lower Divisional Clerk, Senior Stenographer, Stenographer, Senior Store Keeper, Store Keeper, Multitasking Staff and such other administrative and other staff as may be decided by the Board from time to time.

(2)

Notwithstanding the above classification, the Board may map the post or change the classification in accordance with the directions of the Council.

14.

Appointments.

(1)

All posts at the Institute shall normally be filled by advertisement but the Board shall have the power to decide, on the recommendations of the Director, that a particular post be filled by invitation or by promotion from amongst the members of the staff of the Institute.

(2)

The Institute shall make necessary provisions for the reservation of posts as laid down by the Board in accordance with the directives of the Council from time to time and while making appointments to such posts, the appointing authority shall consistently uphold the maintenance of efficiency of administration and the teaching at the Institute.

(3)

The Selection Committees for filling up of posts under the Institute (other than the posts on contract basis) by advertisement or by promotion from amongst the members of staff of the Institute shall be constituted in the manner laid down below, namely:-

(a)

In the case of posts of Professors and equivalent posts in scientific, design and computer staff cadres, the Selection Committee shall consist of the following members, namely:-

(i) The Director

: Chairman;

(ii) One nominee of the Visitor

: Member;

(iii) Two nominees of the Board, one being an expert, but other than a member of the Board.

: Members;

(iv) One expert, other than a member of the Senate, nominated by the Senate.

: Member.

(b)

In the case of posts of Associate Professor, Assistant Professor, equivalent posts in scientific, design and computer staff cadres, and the posts of Librarian, Deputy Librarian and Assistant Librarian and such other academic posts as the Board may decide from time to time the Selection Committee shall consist of the following members, namely:-

(i) The Director

: Chairman;

(ii) Two nominees of the Board one being an expert, but other than a member of the Board

: Members;

(iii) One expert, other than a Member of the Senate, nominated by the Senate, and

: Member;

(iv) The Head of the Department/Academic Centre/School concerned, if the post for which selection is made is lower in status than that occupied by the Head of the Department/Academic Centre/School

: Member;

(v) The Chairman, Library Advisory Committee of the Institute, for the posts of Librarian, Deputy Librarian and Assistant Librarian

: Member.

(c)

In the case of posts of Registrar, Deputy Registrar, Assistant Registrar, Institute Engineer, Sports Officer, Assistant Sports Officer, Chief Medical Officer and Medical Officer, the Selection Committee shall consist of the following members, namely:-

(i) The Director

: Chairman;

(ii) The Deputy Director

: Member;

(iii) Two nominees of the Board as Experts

: Member;

(iv) The Registrar, except for the post of Registrar.

: Member.

(d)

In the case of other Group 'A' posts not covered by clause (a), (b) or (c) above and carrying a scale of pay the maximum of which exceeds the amount specified by the Central Government from time to time, the Selection Committee shall consist of the following members, namely:-

(i) The Director or his nominee

: Chairman;

(ii) A nominee of the Board

: Member;

(iii) The Head of the Department/Centre/School concerned or Registrar as the case may be

: Member;

(iv) An expert from the staff of the Institute nominated by the Director.

: Member.

(e)

In the case of other posts not covered by clause (a), (b), (c) or (d) above and carrying a scale of pay the maximum of which exceeds the amount specified by the Board from time to time, the Selection Committee shall consist of the following members, namely:-

(i) The Director or his nominee

: Chairman;

(ii) A nominee of the Board

: Member;

(iii) The Head of the Department/Academic Centre concerned or the Registrar as the case may be

: Member;

(iv) An expert from the staff of the Institute nominated by the Director

: Member.

(f)

In the case of all other posts, the Director may at his discretion, constitute such Selection Committees as may be considered appropriate by him.

Note : 1. The Chairman of a Selection Committee may invite one or more additional experts from approved panels to assist the Selection Committee.

2. The Selection Committee for appointments to the posts reserved for Scheduled Caste or Scheduled Tribe and OBC candidates shall include one SC/ST member and one OBC member, respectively, from a panel approved by the Director.

(4)

In the absence of the Director, any member of the staff of the Institute, who is appointed to perform the current duties of

the Director, shall be the Chairman of the Selection Committees in the place of the Director.

(5)

In the absence of the Deputy Director, the Director may nominate any member of the staff of the institute to work on the Selection Committees in his place.

(6)

Where a post is to be filled on contract basis or by invitation, the Chairman may, at his discretion, constitute such ad-hoc Selection Committees, as circumstances of each case may require.

(7)

Where a post is to be filled by promotion from amongst the members of the Institute or temporarily for a period not exceeding twelve months, the Board shall lay down the procedure to be followed.

(8)

Notwithstanding anything contained in these Statutes, the Board shall have the power to make appointments of persons trained under "approved" programmes in such manner as it may deem appropriate and the Board shall maintain a schedule of such "approved" programmes.

(9)

If the post is to be filled by advertisement, the terms and conditions of the post shall be advertised by the Registrar and all applications received within the date specified in the advertisement shall be considered by the Selection Committee, provided that the Selection Committee may for sufficient reasons consider any application received after the date so specified:

Provided further that if the Board considers it appropriate, there shall be an advertisement on the website of the Institute for various posts and the applications received from time to time may be considered by the appropriate Departmental Committees and their recommendations sent to the Director for taking appropriate action in accordance with the procedure laid down by the Board from time to time.

(10)

The Selection Committee shall examine the credentials of all persons who have applied and may also consider other suitable names suggested, if any, by a member of the Selection Committee or brought otherwise to the notice of the Committee and the Selection Committee may interview any of the candidates, as it thinks fit and shall, at the discretion of its Chairman, cause a written test or tests including an oral presentation to be held for all or some of the candidates as the Chairman may think fit, and shall make its recommendations to the Board or the Director, as the case may be, with the names of the selected candidates being arranged in order of merit:

Provided that the Selection Committee constituted under clause (b) of sub-statute (3) above, may recommend a candidate to be appointed as ex-cadre Assistant Professor on Contract for an initial period of three years which may be further extended for a period not exceeding two years.

(11)

No act or proceeding of any Selection Committee shall be called in question on the ground merely of the absence of any member or members of the Selection Committee:

Provided that, if any meeting of the Selection Committee is found necessary, the Registrar shall give notice of the meeting to the members of the Selection Committee at least a fortnight before the date of the meeting.

(12)

Unless otherwise provided for under these Statutes, a Selection Committee constituted for the purpose of making recommendations for appointment to a post shall be eligible to exercise its functions in relation to that post until the time the appointment is made.

(13)

A candidate applying for a post other than faculty and academic posts under the Institute shall be charged such application fees as may be determined by the Board from time to time:

Provided that the candidates belonging to the Scheduled castes and Scheduled tribes and displaced persons may be granted such concessions in the payment of application fees as may be decided by the Board or Council from time to time.

(14)

Candidates selected for interview for a post under the Institute may be paid such travelling allowance as may be determined by the Board from time to time in this behalf.

(15)

All appointments made at the Institute shall be reported to the Board at its next meeting.

15. Terms and Conditions of Service of Permanent Employees.

(1)

The permanent employees of the Institute shall be governed by the following terms and conditions, namely:-

(1)

Every appointment shall be subject to the condition that the appointee is certified as being in sound health and physically fit for service in India by a medical authority nominated by the Board:

Provided that the Board may, for sufficient reasons, relax the medical requirements in any particular case or class of cases, subject to such conditions, if any, as may be laid down by the Board.

(2)

Subject to the provisions of the Act and the Statutes, all appointments to such posts under the Institutes shall ordinarily be made on probation for a period of one year after which period the appointee, if confirmed, shall continue to hold his office subject to the provisions of the Act and the Statutes, till the end of the month in which he attains the age of superannuation as decided by the Council and/or the Central Government from time to time:

Provided that where the Board considers that in the interest of the students and for the purpose of teaching and guiding the students registered for the Ph.D. programme, any member of the academic staff should be reemployed, it may reemploy such a member till the end of the semester or the academic session as may be considered appropriate in the circumstances of each case:

Provided further that where it becomes necessary to reemploy any such member beyond the end of the semester or academic session as the case may be, the Board may, with the previous approval of the Visitor, re-employ any such member for such period as may be deemed necessary and in no case exceeding the end of the academic session in which he attains the age of seventy years. Provided also that in no circumstances such member shall be reemployed for any purposes other than those of teaching and guiding the students registered for the Ph.D. programme.

(3)

At any time after an employee has completed twenty years' qualifying service, he may, by giving notice of not less than three months in writing to the appointing authority, retire from service on the terms and conditions laid down by the Central Government from time to time for its own employees.

(4)

The appointing authority shall have the power to extend the period of probation of any appointee for such periods as may be found necessary but not exceeding two years, provided that if, after the extended period of probation, the appointee is neither confirmed nor his services terminated, he shall, on the 30th day thereafter, be deemed to have been confirmed.

(5)

An employee of the Institute shall devote his whole time to the service of the Institute and shall not engage, directly or indirectly, in any trade or business or any other work which may interfere with the proper discharge of his duties provided the bar shall not apply to academic work and consultative practice undertaken with the prior permission of the Director, or in accordance with the procedures laid down by the Board from time to time.

(6)

The appointing authority shall have the power to terminate the services of any member of the staff without notice and without any cause assigned thereto during the period of probation.

(7)

The appointing authority shall have the power to terminate the services of any member of the staff by three months' notice or on payment of three months' salary in lieu thereof, if, on medical grounds, certified by the medical authority nominated by the Board, his retention in service is considered undesirable by such appointing authority.

(8)

The Board shall have the power to terminate the services of any member of the staff on grounds of retrenchment or economy by giving to the person concerned six months' notice in writing or on payment of six months' salary in lieu thereof.

(9)

An employee of the Institute may terminate his engagement by giving the appointing authority three months' notice,

provided that the appointing authority may for sufficient reasons, either reduce this period or call upon the employee concerned to continue till the end of the academic session in which the notice is received.

(10)

A member of the staff appointed at the Institute may be placed under suspension or disciplinary proceedings may be started against him as per the procedure made in Statutes or both.

(11)

The employees of the Institute shall be entitled to travelling and daily allowances according to the scales laid down by the Board from time to time.

(12)

The employees of the Institute shall be entitled to reimbursement of medical expenses incurred on themselves and their families with the prior approval of the Council.

(13)

The employees of the Institute shall be governed by the Conduct rules.

(14)

It shall be for the Council to decide as to the class of employees of the Institute who shall be entitled to vacation.

16.

Terms and Conditions of Service of Temporary Employees.

(1)

The service of a temporary employee shall be liable to termination at any time by notice in writing given either by the employee to the appointing authority, or by the appointing authority to the employee and the period of such notice shall be one month, unless otherwise agreed to by the Institute and the employee.

(2)

The other terms and conditions of service of such employee shall be such as may be specified by the appointing authority in his letter of appointment.

17.

Appointment on Contracts.

(1)

Notwithstanding anything contained in these Statutes, the Board may, in special circumstances appoint an eminent person on Contract for a period not exceeding five years, with a provision of renewal for further periods:

Provided that every such appointment and the terms thereof shall be subject to the prior approval of the Chairman of the Council.

(2)

Subject to the provisions contained in the Act, the Board may appoint any person on contract in the prescribed scales of pay and on the terms and conditions applicable to the relevant posts for a period not exceeding five years with a provision of renewal for further period and for making such appointments, the Chairman may, at his discretion, constitute such ad-hoc Selection Committees, as the circumstances of each case may require.

18.

Retirement Benefits.

- A Contributory Provident Fund-cum-Gratuity Scheme, a General Provident Fund-cum-Pension-cum-Gratuity Scheme and a Defined Contribution Pension Scheme (new pension scheme effective from 1st day of January 2004) shall be constituted, maintained and administered for the employees of the Institute.

19.

Vacation and Leave.

(1)

Every employee of the Institute shall be entitled to vacation and leave.

(2)

When an employee joins the Institute or a Central University from any of the other institutes or any Central University or any State University or any other Institute/Organisation of the Central/State Government, the leave to his credit on the date immediately before the date of such joining shall be carried forward and credited to his leave account in the Institute or the Central University subject to the prescribed limit of accumulation of leave:

Provided that for this purpose the State University or any other Institute/Organization of the Central/State Government

from which an employee joins the Institute will discharge the leave salary liability for such leave to be carried forward.
20.

Residential Accommodation for Staff.

- The employees of the Institute shall be eligible for allotment of a house within the campus of the Institute, if available.
21.

Travelling Allowance.

(1)

The members of the Board and other Authorities of the Institute and the members of the Committees constituted under the Act or these Statutes or appointed by the Board and other Authorities, other than Government employees and employees of the Institute, shall be entitled to such travelling allowance and daily allowance for attending the meetings of the Authorities and the Committees as may be laid down by the Board from time to time.

(2)

The members of the Board and other Authorities of the Institute and the Committees, who are Government employees, shall receive travelling allowance and daily allowance from the source from which they draw their salaries at the rates admissible to them:

Provided that if, required by the members, the Institute shall reimburse the Travelling allowance or Dearness allowance as laid down by the Board from time to time, to the members concerned if they declare that they shall not claim Travelling allowance or Dearness allowance from any other source.

22.

Departments, Centres and Service Centres.

(1)

The Institute shall have the following Departments, namely:-

(a)

Applied Chemistry;

(b)

Applied Geology;

(c)

Applied Geophysics;

(d)

Applied Mathematics;

(e)

Applied Physics;

(f)

Chemical Engineering;

(g)

Civil Engineering;

(h)

Computer Science and Engineering;

(i)

Electrical Engineering;

(j)

Electronics Engineering;

(k)

Environmental Science and Engineering;

(l)

Fuel and Mineral Engineering;

(m)

Humanities and Social Sciences;

(n)

Management Studies;

(o)

Mechanical Engineering;

(p)

Mining Engineering;

(q)

Mining Machinery Engineering;

(r)

Petroleum Engineering;

Provided that the Board may, on the recommendation of the Senate create or modify or abolish any Department or merge it with another Department.

(2)

The Institute shall have the following Academic and Service Centres, namely:-

(a) Centre for Innovation, Incubation and

Entrepreneurship

Academic Centre;

(b) Centre for Renewable Energy

Academic Centre;

(c) Centre of Excellence in Safety, Occupational

Health and Disaster Management

Academic Centre;

(d) Centre for Clean Coal Technology

Academic Centre;

(e) Centre for Water Resource Management

Academic Centre;

(f) Centre of Excellence in Mining Technology

Academic Centre;

(g) Key Resource Centre for Water And Sanitation

Academic Centre;

(h) Australia-India Joint Research Centre on

Clean Coal & Energy Technology

Academic Centre;

(i) Executive Development Centre

Academic Centre;

(j) Central Library

Academic Service Centre;

(k) Computer Centre

Academic Service Centre;

(l) Industry Institute Interaction Facility,

Kolkata

Academic Service Centre;

(m) Industry Institute Interaction Facility, New

Delhi

Academic Service Centre;

(n) Central Research Facility

Academic Service Centre;

(o) Centre for Societal Mission

Service Centre:

Provided that the Board may, on recommendation of the Senate, establish or abolish any Centre or Service Centre or merge it with another Centre or Service Centre or a Department or convert it into a Department.

23.

Head of the Department.

(1)

Each Department of the Institute shall be placed in charge of a Head who shall be selected by the Director from amongst the Professors and Associate Professors in such manner as may be laid down by the Board from time to time. Each Centre or School or Service Centre of the Institute shall be placed in charge of a Head who shall be selected by the Director from amongst the Professors or Associate Professors, Chief Scientific Officers or Principal Scientific Officers, Chief Design Engineers or Principal Design Engineers or Librarian in the Centre or School or Service Centre or in a cognate Department or Centre or School in such manner as may be laid down by the Board from time to time: Provided that when in the opinion of the Director the situation so demands, the Director may himself take temporary charge of a Department or Centre or School or Service Centre or place it under the charge of the Deputy Director or a Professor from another Department or Centre for a period not exceeding six months.

(2)

The Head of the Department or Centre or School or Service Centre shall be responsible for the entire working of the Department or Centre or School or Service Centre, subject to the general control of the Director.

(3)

It shall be the duty of the Head of the Department or Centre or School or Service Centre to see that the decisions of the authorities of the Institute and of the Director are faithfully carried out. He shall perform such other duties as may be assigned to him by the Director.

24.

Institution of Fellowships, Scholarships, Exhibitions, Medals and Prizes.

- Consistent with the decisions of the Council and the policies laid down by the Central Government, from time to time, the Institute, shall institute and award such stipends, fellowships, scholarships, exhibitions, medals, prizes and other awards to be awarded to the undergraduate, postgraduate, research and post-doctoral students for different academic programmes as may be prescribed by the Ordinances.

25.

Fees and Award of Fee Waivers.

(1)

The Institute shall charge such fees from the undergraduate, postgraduate, research and post-doctoral students for different academic programmes as may be determined by the Board consistent with the decision of the Council and the policies laid down by the Central Government from time to time:

Provided that the Institute shall also award fee waivers to the students and research scholars in accordance with the decision of the Board and consistent with the policy of the Central Government and directions of the Council from time to time.

(2)

The procedure for the deposition of fees, delay fine, entry or deletion of the names from the rolls of the academic programmes of the Institute, and such other matter as may be decided by the Senate, shall be laid down in the Ordinances.

26.

Hostels.

(1)

(a)

The Institute shall build and maintain Hostels and the students, including research students may reside in the Hostels built in the Institute and Institute may frame Ordinances for the purpose from time to time.

(b)

The students who do not reside in the Hostels shall not be required to pay any charge that is recoverable from the students residing in the hostels e.g. establishment charges, mess subsidy charges, room rent, electricity charges, etc.

(2)

Every student residing in the Hostels and those living outside the Institute campuses shall conform to the Standing Orders laid down by the Senate for the purpose.

(3)

For each Hostel, there may be a Chief Warden, and such number of Wardens or Assistant Wardens and other staff as may be laid down by the Board and the procedure of the appointment of the Chief Warden, Warden or Assistant Warden and other staff in the Hostel, the entitlement of facilities, if any, and the allowances payable to them, if any, shall be such

as may be specified in the Ordinances.

27.

Conferment of Honorary Degrees.

- All proposals for the conferment of honorary degrees shall be made by the Senate and shall require the assent of the Board before submission to the Visitor for confirmation :

Provided that in cases of urgency, the Chairman may submit on behalf of the Board, such proposal to the Visitor.

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